

TEMPLETON VS. GENERAL MOTORS, LLC

CASE NUMBER: 22CV-0201169

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiff Joshua Templeton moves for an award of attorney fees, costs and expenses in the amount of \$57,806.87, pursuant to a signed CCP 998 Offer to Compromise and Cal. Civ. Code § 1794(d). Defendant General Motors, LLC, opposes the motion on the grounds that it is untimely, and in the alternative, argue for a reduced award.

Timeliness: Defendant argues the motion must be denied outright as untimely. Defendant cites CRC Rule 3.1385(b) and argues that the motion was filed 323 days “after court-ordered, automatic dismissal following GM’s filing of a Notice of Settlement – compels its denial.” Defendant also cites *Hatlevig v. General Motors LLC* (Cal. App. 4th Dist., Div. 1, Feb. 17, 2026, D084360) 2026 WL 445030, which holds that a formal entered judgment or signed dismissal order is not required to start the 180-day clock for determining the timeliness of the fee motion. Instead, a court-ordered or automatic dismissal under CRC 3.1385(b) (when a plaintiff fails to file a dismissal after settlement) constitutes a “judgment” sufficient to trigger the deadline under rule 3.1702.

Here, there was no court-ordered or automatic dismissal under CRC 3.1385(b). Instead, the Court executed an Order pursuant to the parties’ stipulation, which provided that the case was dismissed with prejudice, and that the court retains jurisdiction pursuant to CCP § 664.6 to enforce settlement including Plaintiff’s attorney fees, costs and expenses. No deadline is included in the order. The Court declines to deny the motion as untimely.

Request for Judicial Notice: Plaintiff requests the court take judicial notice of minute orders, tentative rulings, and stipulation and orders from various Los Angeles Superior Court cases. The request is denied because those documents have not been provided. They are not attached to either the Angel Baker Declaration or the Payam Shahian Declaration and do not appear on the Index of Exhibits submitted in support of Plaintiff’s Motion.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney’s fees. Civ. C. § 1794(d). The attorney’s fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney’s fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney’s fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party’s attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court’s focus in evaluating the fee request should be to provide a fee award reasonably

designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

GM asks the Court to strike or reduce 45.3 hours for tasks including drafting the complaint, discovery, meet and confer, motions, and trial documents which is argues are "templated" and substantially similar to other work product which GM has already recovered for. GM fails to cite controlling authority which would compel this result and the Court finds that the time spent on these tasks appears reasonable based on the detailed billing records provided. However, the Court declines to award attorney time incurred to remedy Plaintiff's failure to appear at the trial on February 26, 2025. On that date, the Court dismissed this action without prejudice pursuant to CCP § 581. The dismissal was later set aside pursuant to CCP § 473(b). Given that the failure to appear at trial and resulting dismissal was due to Plaintiff's Counsel's admitted mistake, it would be unreasonable to require Defendant to pay attorney fees on the time incurred attempting to remedy the mistake. Therefore, 21.4 hours billed for the motion set aside dismissal (12.1 hours), and to the *ex parte* motion thereon (9.3 hours) are stricken.

Sixteen timekeepers billed a total of 71.2 hours to this matter. With the reduction of 21.4 hours resulting from the failure to appear at trial, total time awarded is 49.8 attorney hours.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval of rates ranging from \$325-675 per hour. Counsel provides details on each attorney's education and experience. Counsel also supports their requested rates by referring to a rate survey as well as other courts where their rates have been approved. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Multiplier: The Court is not persuaded that a 1.35 multiplier is warranted on this record. A multiplier may be awarded based on the novelty and difficulty of the issues, the skill displayed, the extent to which the litigation precluded other employment, and the contingent nature of the fee award. *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132. An enhancement is discretionary, not automatic, even in cases achieving a favorable result. *Mikhaeilpoor v. BMW of North America, LLC*, 48 Cal.App.5th 240, 247-248.

Plaintiff has not shown this case presented novel or unusually difficult issues; it resolved through

a standard 998 offer process common to Song-Beverly litigation of this kind. Nor has Plaintiff shown that this representation precluded counsel from accepting other work. As to contingent risk, Counsel's declaration does not persuasively distinguish the risk in this case from the risk inherent in any Song-Beverly contingency matter, where fee-shifting is mandatory and the primary contingency is the amount, not the entitlement, of recovery.

As to delay in payment, the Court recognizes this is a permissible basis for enhancement in an appropriate case. *Ketchum, supra*, 24 Cal.4th at p. 1138. However, the record reflects significant periods of inactivity in the litigation, including gaps of several months with no billed time, which tempers the weight the Court is inclined to give this factor. Accordingly, the Court declines to apply a multiplier.

Anticipated Time: Plaintiff seeks an additional \$1,500 “for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion.” A breakdown of the hourly rate and time to be spent is not provided in the brief or the supporting declaration, so the Court cannot make a determination on the reasonableness of the amount requested. Additionally, no reply brief has been filed by the deadline set forth in CCP § 1005. Therefore, the additional \$1,500 will not be awarded.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). The moving party bears the burden of establishing that claimed costs were reasonably and actually incurred. Plaintiff has provided a detailed table of \$5,164.82 in costs and expenses at Exhibit 1 to the Declaration of Payam Shahian (page 30). Defendant objects to the costs as not sufficiently detailed. The Court finds that the costs are sufficiently detailed and are recoverable, with the exception of \$545.00 paid to Veritext on April 14, 2025 for “California Region for Attending Hearing on Plaintiff’s Motion to Set Aside Dismissal,” for the same reasons discussed above with respect to the attorney fee recovery on the motion to set aside dismissal. Therefore, Costs in the amount of \$4,619.82 are awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$19,920.00 (49.8 hours at \$400 per hour) and costs of \$4,619.82 are awarded, for a total of \$24,539.82. A proposed order has been lodged and will be modified.

U.S BANK NATIONAL ASSOCIATION VS. HASTINGS, ET AL.

CASE NUMBER: 24CV-0205776

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 4, 2026, to Plaintiff and counsel for failure to appear on May 26, 2026, failure to timely prosecute, and failure to comply with local rules regarding a status update. Plaintiff has filed a late status statement indicating that the matter has been on a loss mitigation hold. Plaintiff also states the failure to appear was inadvertent. Plaintiff requests an additional 90 days to resolve this matter. Today’s hearing on the Order to Show Cause is continued to **Monday, October 19, 2026 at 9:00 a.m. in Department 64**. If default judgment has not been requested by that date, Plaintiff is ordered to file a status statement at least five court days prior to the hearing. No appearances are necessary on today’s calendar.